

Shishir Kumar Singh v. Purvanchal Vidyut Vitran Nigam Limited

High Court of Judicature at Allahabad · Division Bench · 9 November 2017 · WRIT - C No. 52633 of 2017 · **Writ disposed; petitioner relegated to Clause 6.5 for inflated bills.**

HEADNOTE

A consumer alleging inflated electricity bills must invoke Clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed of without examining the bills. The original order's citation of Clause 6.54 was later corrected to Clause 6.5.

FACTUAL SUMMARY

Shishir Kumar Singh filed a writ in the Allahabad High Court against Purvanchal Vidyut Vitran Nigam Limited, claiming that the electricity bills issued to him were inflated. Counsel for the Corporation pointed to the Uttar Pradesh Electricity Supply Code, 2005 as the channel for such a grievance. Dilip Gupta and Jayant Banerji JJ. heard the petition on 9 November 2017 and later, on 4 December 2017, allowed a correction application substituting the clause number recited in the original order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

inflated bills — objection under Clause 6.5

HOLDING

Where the consumer claims that bills issued by the licensee are inflated, the objection is to be pursued under Clause 6.5 of the Electricity Supply Code, 2005. The writ is disposed of, leaving that remedy open. ¶ 2-3

FLAG original order cited Clause 6.54; Civil Misc. Correction Application No. 393852 of 2017 (4.12.2017) substituted Clause 6.5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILLS ISSUED TO THE PETITIONER WERE IN FACT INFLATED
merits of the billing dispute left to the Clause 6.5 forum ¶ 1-3